



# Homeschooling in Tennessee

A Legal Rights & Resources Guide  
for Diverse Families

For Black, Brown, LGBTQ+, and special-needs  
homeschool & hybrid-learning families

A SEAT Squad Digital Download · Updated June 2026

### **Important: This Is Not Legal Advice**

This guide is for informational purposes only. It is not legal advice. Laws change frequently, especially in Tennessee where LGBTQ+ legislation has been evolving rapidly. **Always verify against primary sources.** Consult a TN-licensed attorney for complex situations.

This guide reflects laws and programs as of **June 2026**.

## **How to Use This Guide**

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Everything a diverse homeschooling family needs to know to legally homeschool in Tennessee, access available scholarship funds, navigate special needs services, and understand — carefully — the legal landscape for LGBTQ+ families, which is the most restrictive of any state in our guide series.

### **What's Inside**

1. **Your Three Options** — Independent, Church-Related, and Category III
2. **Requirements by Option** — Notification, testing, qualifications, records
3. **The ESA Program** — TN Education Savings Account (limited to certain districts)
4. **Special Needs Provisions** — IEP rights, services access
5. **LGBTQ+ Family Considerations** — The most restrictive state in our series
6. **Inclusive Resources** — Co-ops, organizations, support networks
7. **Templates & Checklists** — Registration, testing schedule, records

## SECTION 1

# Your Three Options in Tennessee

Tennessee offers **three legal paths** for homeschooling. Each has different requirements, oversight, and flexibility.

|                                 | Option 1:<br>Independent                                                  | Option 2: Church-<br>Related School                                                     | Option 3: Category<br>III (Accredited<br>Online)                             |
|---------------------------------|---------------------------------------------------------------------------|-----------------------------------------------------------------------------------------|------------------------------------------------------------------------------|
| <b>Who you<br/>report to</b>    | Local school district                                                     | The church-related<br>school                                                            | The accredited<br>online school                                              |
| <b>Notification</b>             | Yes — notice to local<br>school district                                  | Enrollment with<br>church school                                                        | Enrollment with<br>online school                                             |
| <b>Parent<br/>qualification</b> | HS diploma or GED                                                         | Set by church school                                                                    | Set by online school                                                         |
| <b>Required<br/>subjects</b>    | No (but testing covers<br>core areas)                                     | Set by church school                                                                    | Set by online school                                                         |
| <b>Testing</b>                  | Yes — grades 5, 7, 9                                                      | Yes (for 2a) / varies<br>(2b)                                                           | Set by online school                                                         |
| <b>Attendance</b>               | 4 hours/day, 180 days                                                     | Set by church school                                                                    | Set by online school                                                         |
| <b>ESA eligible?</b>            | Depends on district                                                       | Depends on district                                                                     | Depends on district                                                          |
| <b>Best for</b>                 | Families who want<br>independence and<br>minimal third-party<br>oversight | Families who want<br>structure and a faith-<br>based (or sometimes<br>secular) umbrella | Families who want<br>an accredited<br>curriculum with built-<br>in oversight |

**Which option is right for you?** Option 1 gives you the most independence. Option 2 (church-related) is the most popular in TN but often comes with religious requirements — look for inclusive churches if you need a secular or

affirming environment. Option 3 is best for families who want accreditation and don't mind online learning.

## SECTION 2

# Requirements by Option

### Option 1: Independent Homeschool

**Step 1:** Submit a notice to your **local school district** (director of schools) each year by August 1. Include the child's name, age, grade level, and your intent to homeschool.

**Step 2:** Parent must have a **high school diploma or GED**.

**Step 3:** Maintain a schedule of **4 hours per day for 180 days** of instruction.

**Step 4:** Administer a **nationally standardized test** in grades 5, 7, and 9. Results are submitted to the local school district.

**Step 5:** Maintain **attendance records** and make them available for inspection.

### Option 2: Church-Related School (Umbrella)

You enroll your child in a **church-related school** that supervises your homeschooling. The church school sets its own requirements for curriculum, testing, attendance, and reporting.

**Option 2a:** The church school is associated with a 501(c)(3) and registered with the TN Department of Education. Testing is required in grades 5, 7, 9.

**Option 2b:** The church school operates under different accreditation. Requirements vary by school.

**Finding inclusive church-related schools:** Many church-related schools in TN are conservative Christian. If you need a secular or LGBTQ+ affirming umbrella, search carefully — they exist but are less common. Ask directly about inclusion policies before enrolling.

### Option 3: Category III (Accredited Online School)

You enroll your child in a **Category III accredited online school**. The school must be accredited by an agency approved by TN Department of Education. This option provides the most structure but the least flexibility.

### What Your Homeschooled Student CAN Access

TN home school students may:

- **Participate in extracurricular activities** at their zoned public school (T.C.A. § 49-6-3050) — including sports, clubs, and band
- **Dual enrollment** at community colleges
- **TN Promise** — free community college tuition for eligible students (homeschoolers can qualify)
- **HOPE Scholarship** — college funding based on GPA and ACT score

## SECTION 3

# The TN Education Savings Account (ESA)

Tennessee has an ESA program, but it is **not universal**. It is limited to students in specific school districts.

## Who Is Eligible

The TN ESA is available to students who:

- Are zoned to attend a TN public school that is in the **bottom 5% of schools** by performance (as determined by the TN Department of Education)
- Were enrolled in a TN public school for the prior school year, OR are entering kindergarten, OR are currently in a TN ESA-eligible school
- Live in an **eligible district** — initially limited to Davidson County (Nashville) and Shelby County (Memphis), but the program is expanding to other districts

**This is a significant limitation.** If you live outside Nashville or Memphis (or the expanding eligible districts), you may not be eligible for the TN ESA.

## How Much Funding

The TN ESA provides approximately **\$8,000+ per student per year**. Funds are deposited into an ESA that families manage.

**Verify current funding and eligible districts** at [tn.gov/education/esa](https://tn.gov/education/esa)

## What ESA Funds Can Cover

- Private school tuition
- Tutoring and instructional services

- Curriculum and educational materials
- Educational therapies
- Online courses
- Transportation to educational settings

## How to Apply

### ESA APPLICATION CHECKLIST

- ☐ Verify your child's school is in the bottom 5% (check TN DOE list)
- ☐ Verify you live in an eligible district
- ☐ Confirm prior public school enrollment (if applicable)
- ☐ Apply through the TN ESA portal
- ☐ Provide proof of residency and school enrollment
- ☐ If approved, set up ESA account



## SECTION 4

# Special Needs Provisions

## IEP Rights for TN Homeschoolers

- The **IEP remains valid** as documentation of your child's needs
- **Child Find** — school districts must identify and evaluate children who may need special education services
- You can request an evaluation from your local school district

## Services Available to Homeschooled Students with Disabilities

- **Evaluation services** through your local school district
- **Individualized Education Account (IEA)** — TN has a separate program for students with disabilities (different from the ESA). The IEA provides funds for educational expenses for students with active IEPs. Administered by TN DOE.
- **Tennessee Disability Pathfinder** — statewide information and referral service for disability resources

### PRACTICAL ADVICE

- **If your child has an IEP, also check the IEA program** — TN's Individualized Education Account is specifically for students with disabilities and may have broader eligibility than the general ESA
- **Keep all documentation** — IEPs, evaluations, therapy notes
- **For testing requirements** (grades 5, 7, 9 in Option 1), ask about accommodations for special needs learners
- **The 4-hour/day requirement** (Option 1) can be adapted for neurodivergent learners — break into shorter sessions, include sensory activities, count life skills

## SECTION 5

# LGBTQ+ Family Considerations

**Tennessee is the most restrictive state in our guide series for LGBTQ+ families.** Multiple laws enacted since 2023 create a challenging legal environment. However, homeschooling provides a buffer against school-based restrictions, and Nashville and Memphis have active LGBTQ+ communities.

### SB 1 — Gender-Affirming Care Ban (2023)

Tennessee's SB 1 (2023) **bans all gender-affirming medical care for minors**, including hormone therapy and puberty blockers. This is one of the most restrictive transgender healthcare bans in the country.

**What this means:** Transgender youth in Tennessee cannot access gender-affirming medical care within the state. Families have sought care out of state. This is a significant legal and practical barrier. Consult with a knowledgeable healthcare provider and legal advocate.

### Anti-Drag Law (2023)

Tennessee passed the nation's first **anti-drag performance law** in 2023. The law restricts "adult cabaret performances" including "male or female impersonators" in locations where minors might be present. The law was temporarily blocked by a federal court but remains partially in effect.

**What this means:** Drag performances and some LGBTQ+ community events may be restricted or canceled. This affects Pride events, community gatherings, and some educational programming. Be aware when seeking LGBTQ+ community events for your family.

## Transgender Sports Ban

Tennessee requires student-athletes to participate in sports based on their sex assigned at birth. If your transgender child wants to participate in public school sports through the homeschool equal access provision, this law applies.

## Bathroom Restrictions

Tennessee has had bathroom-related controversies and lawsuits. While there is no single comprehensive bathroom bill currently in effect, the legal landscape around transgender bathroom access in public buildings remains uncertain.

## Vital Records Act (1977)

TN's Vital Records Act **blocks transgender people from changing their gender marker** on birth certificates. This affects legal documentation for transgender family members.

## No Statewide Anti-Discrimination Protections

Tennessee provides **no statewide protections** against discrimination based on sexual orientation or gender identity. The state's "Equal Access to Intrastate Commerce Act" actually **blocks enforcement** of federal Bostock employment protections at the state level, and a state court ruling has further restricted enforcement.

Some cities have limited local protections, but TN state law generally preempts local LGBTQ+ protections.

## Adoption and Parental Rights

- **Adoption:** Same-sex couples can adopt in TN (legal since 2007)

- **Same-sex marriage:** Legal since 2015 (Obergefell)
- **Second-parent adoption:** Available in some counties but varies

## What LGBTQ+ Families CAN Still Do

- **Homeschool with affirming curriculum:** As a homeschooler, you choose your own curriculum. TN has no "Don't Say Gay" equivalent curriculum restriction for homeschoolers. Include LGBTQ+ history, diverse families, and affirming content freely.
- **Marry:** Same-sex marriage is legal
- **Adopt:** Full adoption rights
- **Find community in Nashville and Memphis:** Both cities have active LGBTQ+ communities despite the hostile state-level environment. Nashville Pride and Memphis Pride are annual events.
- **Use ESA/IEA funds for inclusive materials:** If you qualify for state scholarship funds, you can use them for inclusive, diverse, and affirming educational materials.

## Protective Steps for LGBTQ+ Families

- **Legal documents are critical:** Wills, powers of attorney, healthcare surrogacy, and second-parent adoption are especially important in TN given the hostile legal landscape. Consult a TN family law attorney who is LGBTQ+-knowledgeable.
- **Healthcare:** SB 1 bans gender-affirming care for minors in TN. If your child needs this care, you will likely need to travel out of state. Connect with organizations like Tennessee Equality Project for provider referrals and support.
- **Be cautious in public spaces:** The combination of bathroom controversies, anti-drag laws, and lack of anti-discrimination protections creates risk. Know your rights and have a safety plan.
- **Memphis and Nashville offer some protection:** These cities have more progressive local environments and active LGBTQ+ communities, even if

state law is hostile.

- **Consider whether TN is the right state for your family long-term:** This is a difficult but honest question. TN's LGBTQ+ legal landscape is among the most restrictive in the nation. Some families have chosen to relocate to more protective states. We include this not to alarm, but because it's information diverse families need.

## SECTION 6

# Inclusive Resources in Tennessee

Verify all contact information before relying on these resources.

## Scholarship & Legal Resources

| Resource                   | What they do                                                    | Contact                                                                         |
|----------------------------|-----------------------------------------------------------------|---------------------------------------------------------------------------------|
| TN Dept of Education — ESA | Administers the Education Savings Account                       | <a href="https://tn.gov/education">tn.gov/education</a>                         |
| TN Dept of Education — IEA | Individualized Education Account for students with disabilities | <a href="https://tn.gov/education">tn.gov/education</a>                         |
| HSLDA                      | Legal support (note: conservative Christian orientation)        | <a href="https://hslda.org">hslda.org</a>                                       |
| CRHE                       | Inclusive, secular homeschool law info                          | <a href="https://responsiblehomeschooling.org">responsiblehomeschooling.org</a> |

## LGBTQ+ Family Resources

| Resource                   | What they do                                                           | Contact                                                           |
|----------------------------|------------------------------------------------------------------------|-------------------------------------------------------------------|
| Tennessee Equality Project | Statewide LGBTQ+ advocacy. Legislative tracking, community organizing. | <a href="https://tnequalityproject.org">tnequalityproject.org</a> |
| PFLAG Nashville / Memphis  | Family support chapters                                                | <a href="https://pflag.org">pflag.org</a>                         |
| Nashville Pride Center     | Community resources in Nashville                                       | Search for current contact                                        |
| Memphis LGBT Center        | Community resources in Memphis                                         | Search for current contact                                        |

|            |                                    |                |
|------------|------------------------------------|----------------|
| OutMemphis | LGBTQ+ community center in Memphis | outmemphis.org |
|------------|------------------------------------|----------------|

## Cultural & Community Resources

| Resource                          | What they do                                                          | Contact         |
|-----------------------------------|-----------------------------------------------------------------------|-----------------|
| NBHE                              | National Black Home Educators — TN presence                           | nbhe.net        |
| Nashville Black homeschool groups | Active community in metro Nashville                                   | Search Facebook |
| Memphis homeschool groups         | Active community in metro Memphis                                     | Search Facebook |
| TN secular/inclusive co-ops       | Nashville has inclusive co-ops; search "Nashville secular homeschool" | Facebook        |

## Special Needs Resources

| Resource                                            | What they do                                                | Contact                |
|-----------------------------------------------------|-------------------------------------------------------------|------------------------|
| TN Disability Pathfinder                            | Statewide information and referral for disability resources | tnpathfinder.org       |
| Disability Rights TN                                | Legal advocacy for people with disabilities                 | disabilityrightstn.org |
| TN Council on Developmental Disabilities            | Advocacy and programs                                       | tn.gov/cdd             |
| STEP (Support and Training for Exceptional Parents) | TN's parent training and information center                 | tnstep.org             |

**Finding inclusive co-ops:** Nashville has the most active inclusive/secular homeschool community in TN. Search "Nashville secular homeschool" on Facebook. Church-related umbrella schools (Option 2) dominate the TN

homeschool landscape but many are conservative — ask about inclusion policies before enrolling.



## SECTION 7

# Templates & Checklists

### Option 1 Registration Checklist

- ☐ Contact your local school district director of schools
- ☐ Submit notice of intent to homeschool (by August 1)
- ☐ Include child's name, age, grade level
- ☐ Confirm parent holds HS diploma or GED
- ☐ Plan 4 hours/day, 180 days schedule
- ☐ Schedule standardized testing for grades 5, 7, 9
- ☐ Maintain attendance records

### Testing Schedule (Option 1 and 2a)

| Grade   | Test required? | Test used | Date | Results submitted?       |
|---------|----------------|-----------|------|--------------------------|
| Grade 5 | Yes            |           |      | <input type="checkbox"/> |
| Grade 7 | Yes            |           |      | <input type="checkbox"/> |
| Grade 9 | Yes            |           |      | <input type="checkbox"/> |

### Attendance Tracker (180 Days, 4 Hours)

| Month     | Days completed | Running total |
|-----------|----------------|---------------|
| August    | _____          | _____         |
| September | _____          | _____         |
| October   | _____          | _____         |

|              |       |             |
|--------------|-------|-------------|
| November     | _____ | _____       |
| December     | _____ | _____       |
| January      | _____ | _____       |
| February     | _____ | _____       |
| March        | _____ | _____       |
| April        | _____ | _____       |
| May          | _____ | _____       |
| <b>Total</b> |       | _____ / 180 |

### Scholarship Application Tracker

| Program               | Eligible?                | Applied?                 | Status |
|-----------------------|--------------------------|--------------------------|--------|
| TN ESA                | <input type="checkbox"/> | <input type="checkbox"/> |        |
| TN IEA (disabilities) | <input type="checkbox"/> | <input type="checkbox"/> |        |

FOR THE SELLER

## Verification Checklist

- ☐ Verify TN ESA eligible districts (expanding beyond Nashville/Memphis?)
- ☐ Verify ESA funding amount for current year
- ☐ Verify IEA program eligibility and funding
- ☐ Verify Option 1 registration process and deadlines
- ☐ Verify testing requirements (grades 5, 7, 9) still current
- ☐ Verify 4-hour/180-day requirement still current
- ☐ Verify SB 1 (gender-affirming care ban) status and legal challenges
- ☐ Verify anti-drag law status (court challenges ongoing)
- ☐ Check for new LGBTQ+ legislation since June 2026
- ☐ Verify all resource organization contact info
- ☐ Update "as of" date on cover page
- ☐ Replace SEAT Squad URL and generate QR code



## Need Guides for Other States?

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This Tennessee guide is part of a growing series of state-by-state homeschooling legal guides for diverse families.



**[Your SEAT Squad sign-up URL here]**

### What SEAT Squad Members Get

- ♥ Florida, Georgia, North Carolina, Arizona guides — available now
- ♥ Free inclusive homeschooling resource directory
- ♥ Banned book reading lists by grade level
- ♥ Financial literacy workbooks for diverse families
- ♥ Monthly legislative updates for diverse families

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